4359

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such Act embodied in "An Act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, for and in consideration of the sum of Fifty-two thousand five hundred ($52,500.00) dollars, certain real estate delivered to him as the property of David Herrmann, Julius Herrmann, Hermine Lowenthal, David Mayer, Gustav Mayer, Julius Mayer, Sophie Mayer, Karoline Stern, Fannie Oettinger, Isaac Landauer, Julius Landauer, Theodor Landauer, Albert Landauer, Gustav Landauer, Willy Landauer, Anna Eschelbacher, Siegfried Spiegal, Simon Herrmann, Josef Herrmann, Karoline Blumenfeld, Alice Schwab, David Gutmann, Siegfried Gutmann, Theodor Gutmann, Alfred Gutmann, Hedwig Mayer, Karoline Frakenbacher, Jette Gunzenhauser, Sophie Ullman and Ricke Fromm, residing in Germany, whom, after investigation, he did determine to be enemies within the purview of the said Act as amended, which said real estate is situate in the City of New York, County of Bronx, State of New York, and described as follows, to-wit;

All that certain piece or parcel of land, beginning at a point in the easterly line of Ogden Avenue, distant 95 feet southerly along the same from the southeasterly corner of East 165th Street and Ogden Avenue, as said street and avenue are legally opened, thence easterly parallel with East 165th Street, 152.72 feet to Nelson Avenue, thence southerly along the westerly line of Nelson Avenue, 100.27; thence westerly parallel with East 165th Street, 145.31 feet to Ogden Avenue; thence northerly along the easterly line of Ogden Avenue, 100 feet to the point of beginning.

ALSO, all that certain piece or parcel of land, beginning at a point in the westerly line of Woodycrest Avenue, distant southerly along the same, 95.74 feet from the southwesterly corner of Woodycrest Avenue and East 165th Street, as said avenue and street are legally opened; thence westerly parallel with East 165th Street, 167.04 feet to the easterly line of Nelson Avenue; thence southerly along the same, 100.27 feet; thence easterly parallel with East 165th Street, 161.95 feet to the westerly line of Woodycrest Avenue, and thence northerly along the same 100.78 feet to the point of beginning.

My reasons for the foregoing determination, order, rule and regulation are:

(a) An advantageous offer for the purchase of the said real estate has been received by the Alien Property Custodian:

(b) An attempted sale at public auction would be a useless formality and would involve unnecessary expenses, delay and inconvenience, which should be avoided:

(c) The property is vacant, unimproved, producing no income and is subject to heavy taxation.

(d) The Attorneys in Fact for the Alien Enemies have given their assent that this offer be accepted and the property sold.

CALVIN COOLIDGE

THE WHITE HOUSE,
December 19, 1925.

[No. 4359]